

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 12:00 p.m. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

July 14, 2026

10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	Vasquez vs. Diab 26-01550147	1. Demurrer to Complaint 2. Motion to Strike Portions Of Complaint Defendant Debt Resolution Direct, LLC's ("DRD") demurrer to all five causes of action in Plaintiff Allison Vasquez's ("Plaintiff") Complaint is SUSTAINED with 20 days leave to amend. The sole allegation specific to DRD in the Complaint states "Defendant Debt Resolution Direct, LLC ("DRD") is a related business entity affiliated with BAT and controlled by Defendant Diab." (Compl. ¶ 5.) Paragraph 7 of the Complaint generally alleges that "[e]ach Defendant acted as the agent, servant, employee, partner, joint venturer, or alter ego of the others, and in doing the acts alleged herein, acted within the course and scope of such agency and with the consent of their co-defendants." (Compl. ¶ 5.) Based on these conclusory allegations, Plaintiff lumps

	DRD in with all “Defendants” in its claims for breach of promissory note, unjust enrichment, unfair business practices, fraud and conversion. “The ‘single enterprise,’ or alter ego, doctrine is an equitable doctrine: ‘A corporate identity may be disregarded—the “corporate veil” pierced—where an abuse of the corporate privilege justifies holding the equitable ownership of a corporation liable for the actions of the corporation. [Citation.] Under the alter ego doctrine, then, when the corporate form is used to perpetuate a fraud, circumvent a statute, or accomplish some other wrongful or inequitable purpose, the courts will ignore the corporate entity and deem the corporation’s acts to be those of the persons or organizations actually controlling the corporation, in most instances the equitable owners. [Citations.] . . .’ [Citation.]” (Troyk v. Farmers Group, Inc. (2009) 171 Cal.App.4th 1305, 1341.) “The alter ego doctrine traditionally is applied to pierce the corporate veil so that a shareholder may be held liable for the debts or conduct of the corporation. Some courts recognize the corporate veil may be pierced in reverse so that a corporation may be held liable for the debts or conduct of a shareholder. . . A variant of the reverse piercing theory, sometimes called ‘outside’ or ‘third party’ reverse piercing, occurs when a third party outsider seeks to reach corporate assets to satisfy claims against an individual shareholder.” (Postal Instant Press, Inc. v. Kaswa Corp. (2008) 162 Cal.App.4th 1510, 1518.) Here, the Complaint appears to attempt to plead liability against DRD based on an outside reverse piercing theory. However, the case cited by Plaintiff to support application of outside reverse piercing of the corporate veil expressly rejected the doctrine. (Id. at 1518-19 (“We agree with the sound reasoning and analysis of the cases rejecting outside reverse piercing of the corporate veil.”).)
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		Even if the Court were to apply that doctrine, Plaintiff has not pled any facts to establish either a unity of interest or an equitable justification for imposition of the doctrine in this case. Further, Plaintiff has not pled any facts to support an agency, partner, joint venture or other theory of liability against DRD. While DRD is mentioned in Exhibit A to the Complaint, that reference, without further allegations from Plaintiff, does nothing to describe a theory of liability against DRD. Plaintiff's requests for judicial notice are denied as immaterial to the disposition of this demurrer. Motion to Strike In light of this Court's ruling on DRD's demurrer, the motion to strike is DENIED as MOOT. DRD to give notice.
102	Guillen vs. KWK Trucking Inc 25-01535710	1. Demurrer to Answer 2. Case Management Conference Plaintiff Victor Guillen's demurrer to Defendant KWK Trucking, Inc.'s Answer is SUSTAINED in part with leave to amend and OVERRULED in part. Plaintiff argues that many of the affirmative defenses in the Answer fail for lack of sufficient facts because they are pled in a conclusory manner. An answer may include a general denial, specific denial, or new matter constituting an affirmative defense. (Code Civ. Proc., § 431.30.) “ ‘The phrase “new matter” refers to something relied on by a defendant which is not put in issue by the plaintiff. [Citation.] Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as “new matter.” ’ ” (Quantification Settlement Agreement Cases (2011))

201 Cal.App.4th 758, 812.) “Such ‘new matter’ is also known as ‘an affirmative defense.’ ” (Ibid.)

“Affirmative defenses must not be pled as ‘terse legal conclusions,’ but ‘rather . . . as facts “averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint.” ’ ” (Id. at pp. 812-813.)

If, as often occurs, a defendant does not have evidence of certain defenses but fears a waiver argument, they include the defense in conclusory, barren fashion. (See *Ekstrom v. Marquesa at Monarch Beach HOA* (2008) 168 Cal.App.4th 1111, 1122-1123.) Defendants should avoid this practice and only plead the defense when the evidence supports it, and seek leave to amend if need be – which is to be routinely granted. (See *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761; *Green v. Rancho Santa Margarita Mortgage Co.* (1994) 28 Cal.App.4th 686, 692-693.)

The demurrer to Defendant’s second affirmative defense (statute of limitations) is SUSTAINED with 20 days leave to amend. Code Civ. Proc., § 458 provides, “In pleading the Statute of Limitations it is not necessary to state the facts showing the defense, but it may be stated generally that the cause of action is barred by the provisions of Section ____ (giving the number of the section and subdivision thereof, if it is so divided, relied upon) of the Code of Civil Procedure; and if such allegation be controverted, the party pleading must establish, on the trial, the facts showing that the cause of action is so barred.” Here, Defendant has cited several code sections, but has not identified which code section is applicable to which cause of action, and has not identified any subsections, where applicable.

The demurrer to the third through sixth and forty-fifth affirmative defenses for estoppel; waiver; unclean hands; laches; and failure to exercise ordinary care is SUSTAINED with 20 days leave to amend. These defenses raise new matters, but are not supported by facts.

		The thirteenth, fourteenth, eighteenth, twenty-first, twenty-second, twenty-sixth, thirty-sixth and forty-ninth asserted defenses (no causal connection; no protected activity; reasonable steps taken; no private cause of action; failure to exhaust administrative remedies; direct threat to health and safety; no hostile work environment; and bar for damages speculative in nature) are denials of what is alleged in the Complaint. They do not add any new matter and therefore do not fail for lack of details or facts. Thus, the Demurrer to these defenses is OVERRULED. The demurrer to the forty-third affirmative defense (workers compensation is exclusive remedy), forty-sixth affirmative defense (ERISA is the exclusive remedy) and forty-seventh affirmative defense (recovery limited to actual plan benefits) is OVERRULED. While these defenses add new matter, the facts pled are sufficient. The demurrer to Defendant's fifty-first affirmative defense (defenses yet to be identified) is OVERRULED. The inclusion of an "affirmative defense" asserting the right to amend the pleading is common and, ultimately, harmless: "[N]o error or defect in a pleading is to be regarded unless it affects substantial rights." (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 240). "The primary function of a pleading is to give the other party notice so that it may prepare its case...and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights." (Ibid.) Plaintiff to give notice.
103	Elevated Health, Inc. vs. AETNA Health of California Inc. 25-01516102	1. Demurrer to First Amended Complaint 2. <u>Motion to Appear Pro Hac Vice</u> <u>The unopposed application of Andrew M. Brown to be admitted as counsel pro hac vice for Defendant Aetna Health of California, Inc. is GRANTED.</u>

	<u>Defendant to give notice.</u> Defendant Aetna Health of California, Inc. (“Aetna” or “Defendant”) demurs to the First Amended Complaint (FAC) of plaintiff Elevated Health, Inc. (“Plaintiff” or “Elevated Health”). First Cause of Action for Breach of Implied Contract Aetna argues this cause of action fails because Elevated Health has not alleged a meeting of the minds as to a reimbursement rate and, while Elevated Health attempts to allege a meeting of the minds based on Aetna’s prior payments, those allegations make clear that the history of reimbursement between the parties was not consistent. Aetna further argues that any claim for breach of implied-in-law contract fails because it had no obligation to pay Plaintiff and alleged past payments cannot imply a promise of future payment. Plaintiff argues that it provided services with statutorily defined rates known to Defendant and posted promptly at its COVID-19 testing sites, Defendant accepted the benefit of the testing and reimbursed some claims, and Defendant never instructed Plaintiff to stop providing services, all of which gives rise to an implied contract. “A cause of action for breach of implied contract has the same elements as does a cause of action for breach of contract, except that the promise is not expressed in words but is implied from the promisor’s conduct.” (Yari v. Producers Guild of America, Inc. (2008) 161 Cal.App.4th 172, 182.) “ ‘[B]oth types of contract are identical in that they require a meeting of minds or an agreement [citation].’ ” (Pacific Bay Recovery, Inc. v. California Physicians’ Services, Inc. (2017) 12 Cal.App.5th 200, 215.) Plaintiff alleges that it provided COVID-19 diagnostic and screening services to Defendant’s insureds and invoiced Defendant for those services, which Defendant paid in inconsistent amounts. Plaintiff
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		alleges that Defendant’s payment for the services created an implied contract pursuant to which Plaintiff would provide insureds with diagnostic screening and testing and Defendant would pay \$125 for each screening and testing. Plaintiff alleges that Defendant has breached the implied contract by refusing to pay for Plaintiff’s services in whole or in part. Plaintiff’s allegations that Defendant paid prior invoices in inconsistent amounts “undermines [Plaintiff’s] claim that the parties ever agreed to the same contractual terms.” (Pacific Bay, 12 Cal.App.5th at p. 216.) Nothing about Defendant’s alleged conduct supports the conclusion that Defendant agreed to pay \$125 for each screening and testing performed by Plaintiff. Thus, Plaintiff has failed to allege mutual intent as to a material and essential term of an implied contract. (Ibid.) In light of the above, the Demurrer to the first cause of action is SUSTAINED with 20 days' leave to amend. Second Cause of Action for Goods and Services Rendered Aetna contends that this is a quantum meruit claim which fails because Plaintiff has not alleged any express or implied request for services by Aetna and the fact that services were rendered to Aetna’s insureds is insufficient. Further, Plaintiff has not alleged that the COVID-19 tests benefited Aetna. Plaintiff argues that Defendant’s payment of some claims constituted an implied request for Plaintiff to continue to provide services and Defendant benefited from the services because they helped fulfill Defendant’s statutory obligations under the CARES Act and SB 510 and improved its insureds’ health outcomes, thereby reducing the amount spent on its insureds’ medical needs.
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	“To recover in quantum meruit, the ‘plaintiff must establish both that he or she was acting pursuant to either an express or implied request for such services from the defendant and that the services rendered were intended to and did benefit the defendant’; further, the defendant must have ‘ “retained [the] benefit with full appreciation of the facts . . . ” ’ ” (Pacific Bay, 12 Cal.App.5th at p. 214.) “[W]hen the services are rendered by the plaintiff to a third person, the courts have required that there be a specific request therefor from the defendant[.]” (Day v. Alta Bates Medical Center (2002) 98 Cal.App.4th 243, 249.) Therefore, Defendant’s acquiescence to the provision of services or partial payment of claims cannot support a claim for quantum meruit regarding services provided to Defendant’s insureds. Further, allegations regarding medical services to a defendant’s insureds have consistently been found not to be sufficient for a quantum meruit claim. (Stanford Health Care v. Blue Cross Blue Shield of N. Carolina, Inc. (N.D. Cal. Jan. 21, 2022) 2022 WL 195847, at *10.) Thus, Plaintiff’s allegations that Defendant has retained a benefit as a result of Plaintiff’s provision of medical services to its insureds is insufficient. In light of the above, the Demurrer to the second cause of action is SUSTAINED with 20 days leave to amend. Third Cause of Action for Statutory Liability for Violation of Senate Bill 510, The Cares Act and Insurance Code § 10110.7 Aetna contends this cause of action fails because SB 510 (codified as Health & Safety Code section 1342.2), the CARES Act, and Insurance Code section 10110.7 do not provide a private right of action. Aetna cites Insurance Code section 1758.65 to argue that section 10110.7 does not provide a private right of action because enforcement rests with the Commissioner. However, section 1758.65 relates to
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		portable electronics insurance and does not apply here. Thus, Aetna has failed to show that the entire third cause of action fails and the Demurrer is OVERRULED. Fourth Cause of Action for Violation of the UCL Aetna argues this cause of action fails because Plaintiff has an adequate remedy at law through its claim for monetary damages. Further, Plaintiff cannot establish any unfair conduct because it is neither a competitor of Aetna nor a consumer, Plaintiff has not alleged with specificity any unfair business practices, and Plaintiff's "unlawful" allegations are based on statutes that do not create a private right of action. Because Aetna's Demurrer to the third cause of action is overruled, its argument regarding failure to allege any unlawful conduct fails. Elevated Health's fourth cause of action seeks restitution of the amounts that have been withheld by Defendant as well as an injunction prohibiting Defendant from engaging in the alleged unfair and unlawful business practices. These remedies go beyond monetary damages and are proper under a UCL claim. (Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1144.) Thus, the Demurrer to the fourth cause of action is OVERRULED. Fifth and Sixth Causes of Action for Open Book Account and Account Stated Aetna argues the open book account claim fails because Plaintiff does not allege any contractual or fiduciary relationship with Aetna or that Plaintiff kept a detailed statement of a series of transactions for which there is one single and indivisible liability. Further, there was no agreement on the final balance due and therefore, no claim for account stated can lie.
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“[A] book account is defined as ‘a detailed statement which constitutes the principal record’ of transactions between the parties.” (Eloquence Corp. v. Home Consignment Center (2020) 49 Cal.App.5th 655, 666.) Such transactions must arise out of a contract or some fiduciary relation. (Tsemetzin v. Coast Federal Savings & Loan Assn. (1997) 57 Cal.App.4th 1334, 1343.) Here, Plaintiff merely alleges that the parties “had financial transactions with each other” and Plaintiff kept an electronic account of those financial transactions. These allegations fail to show that Plaintiff’s claim is made pursuant to a contract or some fiduciary relation or that Plaintiff’s account is the “principal record” of the parties’ transactions. Thus, the Demurrer to the fifth cause of action is SUSTAINED with 20 days leave to amend.

“The essential elements of an account stated are: (1) previous transactions between the parties establishing the relationship of debtor and creditor; (2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; (3) a promise by the debtor, express or implied, to pay the amount due.” (Leighton v. Forster (2017) 8 Cal.App.5th 467, 491.) Here, as with the implied contract claim, Plaintiff’s allegations that Defendant made inconsistent payments or refused to pay some claims altogether undermines the allegation that Defendant agreed to pay the amounts claimed by Plaintiff. Thus, the Demurrer to the sixth cause of action is SUSTAINED with 20 days leave to amend.

Seventh Cause of Action for Unjust Enrichment

Aetna contends this is not an independent cause of action and Elevated Health fails to allege Aetna knowingly accepted a benefit. Further, allowing Elevated Health to maintain this cause of action would frustrate the California Legislature’s intent not to create a private right of action for violations of these statutes.

There is a split of authority as to whether “unjust enrichment” is an independent cause of action. (Levine v. Blue Shield of California (2010) 189 Cal.App.4th 1117, 1138 [“Although some California courts have suggested the existence of a separate cause of action for unjust enrichment [citation], this court has recently held that ‘[t]here is no cause of action in California for unjust enrichment.’ ”].) The Court will follow Peterson v. Cellco Partnership (2008) 164 Cal.App.4th 1583, which treats unjust enrichment as a separate claim. Pursuant to Peterson, “[t]he elements of an unjust enrichment claim are the ‘receipt of a benefit and [the] unjust retention of the benefit at the expense of another.’” (164 Cal.App.4th at p. 1593.)

Here, Plaintiff alleges that Defendant knew and understood that Plaintiff was undertaking to perform the beneficial services and has been unjustly enriched by its refusal to pay for those services. These allegations state facts sufficient to demonstrate Defendant’s knowing acceptance of a benefit and unjust retention thereof. Further, Defendant’s argument regarding frustration of Legislative intent fails, at least with regard to Insurance Code section 10110.7. Thus, the Demurrer to the seventh cause of action is **OVERRULED**.

Eighth Cause of Action for Declaratory Relief

Aetna argues this claim fails because it is not an independent cause of action, all of Plaintiff’s other causes fail, and Plaintiff’s claim for monetary damages would adequately resolve the dispute between the parties.

“Declaratory relief operates prospectively to declare future rights, rather than to redress past wrongs. . . . Where, . . . , a party has a fully matured cause of action for money, the party must seek the remedy of damages, and not pursue a declaratory relief claim.” (Canova v. Trustees of Imperial Irr. Dist. Employee Pension Plan (2007) 150 Cal.App.4th 1487, 1497.) Plaintiff does not

		dispute that the statutes underlying the FAC regarding the public health emergency posed COVID-19 are no longer in effect. Thus, Plaintiff's claims for payment are fully matured causes of action for money and the Demurrer to the eighth cause of action is SUSTAINED with 20 days leave to amend. Statute of Limitations Elevated Health seeks reimbursement for claims for services provided between January 8, 2021 and November 18, 2023 and this action was filed on October 1, 2025. Aetna argues the UCL, open book account, and account stated claims are all subject to a four-year statute of limitations and are time-barred. Further the claims for goods and services rendered and breach of implied contract are subject to a two-year statute of limitations and are time-barred. Aetna's arguments fail, as the FAC does not show on its face when Aetna refused to pay Plaintiff's invoices. (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315-1316 [“ ‘In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows merely that the action may be barred.’ ”].) Thus, the Demurrer on statute of limitations grounds is OVERRULED. Moving party to give notice. 3. Case Management Conference
104	Smart Solutions, Inc. vs. Magic Brush Car Wash, LP 24-01423896	Motion to Be Relieved as Counsel of Record Bryan Theis/Theis Law Group, PC (“Moving Counsel”) moves to be relieved as Counsel of Record for Defendant/Cross-Complainant Magic Brush Car Wash, LP. The Motion is GRANTED.

		On June 9, 2026, Moving Counsel filed proof of service showing service of the notice of continuance and moving papers on the client on June 9, 2026, by first-class mail. (ROA 84.) Additionally, Moving Counsel has lodged an updated Proposed order reflecting the current trial date of October 19, 2026. (ROA 90.) Moving Counsel has stated a basis for permissive withdrawal under the Rules of Professional Conduct, Rule 1.16, based on a conflict of interest, as the client is refusing to follow Moving Counsel’s advice, which is preventing Moving Counsel from being able to continue the representation. (ROA 58, 65, Judicial Council Form MC-052, Declaration in Support of Attorney’s Motion to be Relieved as Counsel, ¶ 2.) California Rules of Professional Conduct, Rule 1.16(b)(4) provides that a lawyer may withdraw from representing a client if “the client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively.” Moving Attorney has also utilized the Judicial Council Forms (MC-051, MC-052, and MC-053), and has satisfied the notice, declaration, proposed order, and service requirements of California Rules of Court, rule 3.1362. The motion to be relieved as counsel of record is GRANTED. “An attorney may be allowed to withdraw without offending the rule against corporate self-representation.” (Thomas G. Ferruzzo, Inc. v. Superior Court (1980) 104 Cal.App.3d 501, 504.) However, an entity such as Defendant/Cross-Complainant Magic Brush Car Wash, LP, cannot represent itself. (Gamet v. Blanchard (2001) 91 Cal.App.4th 1276, 1284 n.5.) Defendant/Cross-Complainant Magic Brush Car Wash, LP, must obtain representation or risk forfeiting important rights by remaining unrepresented. (Ibid.)
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		Defendant/Cross-Complainant Magic Brush Car Wash, LP, is ordered to obtain new counsel, and file evidence thereof with the court within 30 days from the notice. (CLD Constr., Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1150 [“[T]he court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time.”].) The order relieving Bryan Theis/Theis Law Group, PC as counsel of record for Defendant/Cross-Complainant Magic Brush Car Wash, LP is effective upon counsel filing proofs of service of a copy of the signed order, on the client and on all parties that have appeared in the case. (California Rules of Court, rule 3.1362(e).) Moving Counsel to give notice.
105	National Funding, Inc. vs. Klette Electric PLLC 25-01522615	Motion to Be Relieved as Counsel of Record x 2 Thomas D. Sands (“Moving Attorney”) moves to be relieved as counsel of record for defendants Klette Electric PLLC and Mary Klette. The motions are unopposed and Moving Attorney has stated a basis for permissive withdrawal under the Rules of Professional Conduct, Rule 1.16. All other requirements of the applicable California Rules of Court are satisfied. Accordingly, the motions are GRANTED. The orders relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the clients and on all parties that have appeared in the case. (California Rules of Court, Rule 3.1362(e).) Moving Attorney to give notice.

106	Creditors Adjustment Bureau, Inc., vs. L S R Builders, Inc. 25-01513310	Motion to Set Aside/Vacate Default and Judgment Defendant L S R BUILDERS, INC. (“Defendant” or “LSR”) moves this Court for an order setting aside and vacating the Default entered against Defendant and the Default Judgment entered on March 16, 2026. CCP § 473(b) provides that, on a party's motion, the court may relieve the party or counsel from a judgment, dismissal, order, or other proceeding taken against that party through his or her “mistake, inadvertence, surprise, or excusable neglect.” The Complaint was filed 9/22/2025. The POS (ROA 10) establishes that Defendant was personally served with the Complaint on 12/14/2025. Default occurred on 1/29/2026 (ROA 14). Default Judgment was entered on 3/16/2026. (ROA 26.) By 4/30/2026 Defendant filed this Motion. Here, MP argues that the default/default judgment was the result of excusable neglect. In support of that contention, the Declaration of Martha Soto, the Owner of the Defendant L.S. R. Builders, Inc. indicates that she received the lawsuit and did not know what to do. (Decl. of Soto¶4.) Ms. Soto indicates she immediately looked for an attorney, but could not afford to retain one. (Id¶¶5-8.) Ultimately, she states: 10. I am a lay person without legal training, but I continued to attempt to gather the funds necessary to obtain representation, and reasonably but mistakenly believed that I would be able to do so in time to respond to the Complaint before any judgment was entered. 11. When I was finally able to gather the funds to retain counsel and did retain the current counsel, I was informed by my counsel that a default and default judgment had been entered against LSR.
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“ ‘ “Section 473 is often applied liberally where the party in default moves promptly to seek relief, and the party opposing the motion will not suffer prejudice if relief is granted. [Citations.] In such situations ‘very slight evidence will be required to justify a court in setting aside the default.’ [Citations.] [¶] Moreover, because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default” ’ [Citation.]” (Kramer v. Traditional Escrow, Inc. (2020) 56 Cal.App.5th 13, 28.)

“Because the law favors disposing of cases on their merits, ‘any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations]. Therefore, a trial court order denying relief is scrutinized more carefully than an order permitting trial on the merits.’ [Citations.]” (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 980.) “ ‘[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court’ [Citations.]” (Id. at pp. 981-982.) “Moreover, it has been held that where the aggrieved party makes a strong showing of diligence in seeking relief after discovery of the facts, and the other party is unable to show prejudice from the delay, the original negligence in allowing the default to be taken will be excused on a weak showing.” (Aldrich v. San Fernando Valley Lumber Co. (1985) 170 Cal.App.3d 725, 740.)

Here, Default Judgment was entered within 3 months of the Complaint being served on Defendant. Defendant filed this motion within 1 month of the default judgment having been entered. Plaintiff has been diligent in bringing the motion. Also, Defendant has established no prejudice.

Therefore, the Motion is GRANTED.

Defendant to separately file the Answer.

		Defendant to give notice.
107	Nguyen vs. Yadidi 26-01545507	Motion for Change of Venue (Transfer) Defendants Kayvon Yadidi, D.O., Peter Murray, Phuong Goodwin, Agile Occupational Medicine, LLC, Adam Lerner, Angeles Equity Partners, LLC, Agile Management Aggregator, LLC and Agile Occupational Medicine, PC (“Defendants”) seek an order transferring venue of this action to Los Angeles County. “The court may, on timely motion, order transfer of an action “[w]hen the court designated in the complaint is not the proper court.” (Code Civ. Proc., §§ 397(a), 396b(a).) The moving party must overcome the presumption that the plaintiff has selected the proper venue. (Mitchell v. Superior Court (1986) 186 Cal.App.3d 1040, 1046.) Thus, “[i]t is the moving defendant’s burden to demonstrate that the plaintiff’s venue selection is not proper under any of the statutory grounds.” (Ibid.) Code of Civil Procedure section 395 states in pertinent part: “(a) Except as otherwise provided by law and subject to the power of the court to transfer actions or proceedings as provided in this title, the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action.” It further states: “Subject to subdivision (b), if a defendant has contracted to perform an obligation in a particular county, the superior court in the county where the obligation is to be performed, where the contract in fact was entered into, or where the defendant or any defendant resides at the commencement of the action is a proper court for the trial of an action founded on that obligation, and the county where the obligation is incurred is the county where it is to be performed, unless there is a special contract in writing to the contrary.” (Code Civ. Proc., § 395(a).)

		Code of Civil Procedure section 395.5 provides: “A corporation or association may be sued in the county where the contract is made or is to be performed, or where the obligation or liability arises, or the breach occurs; or in the county where the principal place of business of such corporation is situated, subject to the power of the court to change the place of trial as in other cases.” Here, the action was filed in Orange County, which is where several of the Defendants reside or have principal places of business. (See FAC ¶¶ 11, 14, 15, 18.) It is thus an appropriate venue for this action. Defendants contend that venue must be transferred to Los Angeles County because clauses in four of the agreements alleged in the First Amended Complaint (“FAC”) mandate Los Angeles County as the venue for this action. This argument is not well taken. First, the FAC alleges eighteen causes of action, only two of which sound in contract (the first and second causes of action for breach of contract and breach of implied covenant of good faith and faith dealing). These causes of action are only asserted against Agile Occupational Medicine, LLC and Agile Management Aggregator LLC. The causes of action against the remaining Defendants include claims of interference with prospective economic advantage, unfair competition, promissory estoppel, fraud, negligence, conversion, theft and related claims. Further, while Defendants have presented authority which indicates that a court may enforce a contractual venue clause—so long as the chosen venue is a permissible venue under the statutory scheme—that authority does not go so far as to require a court to enforce a venue selection clause where the selected venue is one of several permissible options. (See <i>Battaglia Enterprises, Inc. v. Superior Court</i> (2013) 215 Cal.App.4th 309, 317-318.)
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		Accordingly, the motion is DENIED. The Court declines to rule on Defendants’ objections as immaterial to the disposition of this motion. The Court also declines to take judicial notice of the documents requested by Plaintiffs, as immaterial to the disposition of this motion. Defendants to give notice.
108	Birchall vs. Orange County Sheriff Department 25-01505924	1. Motion for Judgment on the Pleadings Defendant COUNTY OF ORANGE, a public entity, erroneously sued and served herein as ORANGE COUNTY SHERIFF’S DEPARTMENT (the “County”), will and hereby does move the Court, pursuant to California Code of Civil Procedure Section 438 and this Court’s non statutory authority to hear motions for judgment on the pleadings, for an Order granting Defendant’s Motion for Judgment on the Pleadings without leave to amend and dismissing Plaintiff MARC BRUCE RONALD BIRCHALL’s Complaint. On 8/25/2025 Plaintiff initiated this lawsuit by filing a Complaint. On 4/30/2026 Defendant served Plaintiff via email with this Motion for Judgment on the Pleadings. Plaintiff is in pro per. Effective January 1, 2023, an unrepresented party may consent to receive electronic service. [CCP § 1010.6(c)(2); see CRC 2.251(c)(3)(B)—unrepresented parties must affirmatively consent to electronic service] Express consent to electronic service is accomplished either by (i) serving a notice on all other parties and filing it with the court, or (ii) by “[m]anifesting affirmative consent through electronic means with the court or the court's electronic filing service provider, and concurrently providing the party's electronic address with that consent for the purpose of receiving

		electronic service. The act of electronic filing shall not be construed as express consent.” [CCP § 1010.6(c)(3); see CRC 2.251(b)(1)] Any person who has given express consent to electronic service may expressly withdraw that consent. [CCP § 1010.6(c)(4)] (The Judicial Council has promulgated an optional form for doing that.) Here, it does not appear Plaintiff provided express consent to electronic service. Indeed, the Court recently provided notice of its minute order by mailing it to Plaintiff. Additionally, the Proof of Service for this Motion is defective because the electronic service address of the person making the service was not provided. [See [CCP § 1013b(a), (b); CRC 2.251(j)(1)]. Therefore, the motion is continued to August 18, 2026 at 10:00 am, in order for Defendant to serve the Plaintiff via mail at MARC BRUCE RONALD BIRCHALL 555 N EL CAMINO REAL A170 SAN CLEMENTE, CA 92672. 2. Case Management Conference is continued to August 18, 2026, at 10:00 am. Defendant to also give notice of this Court’s ruling.
109	URP California, LLC vs. Kohr 24-01391305	Plaintiff, URP California, Inc. (“Plaintiff” or “URP”), moves for a right to attach order and writ of attachment against Defendant, Paul Khor (“Khor”), as to real property located at 126 Cinnamon Teal, Aliso Viejo, California 92656, and 16 Clearbrook, Irvine, CA 92614, with the amount to be secured by the attachment totaling \$182,729.52 which includes estimated costs of \$5,000 and estimated allowable attorney fees of \$50,000. The Application is DENIED. Upon filing of the complaint, or at any time thereafter, the plaintiff may apply for a RTAO & writ of attachment by filing

	an application for the order & writ with the court in which the action is brought. (Code Civ. Proc. § 484.010.) Following a hearing on the application, the court may only issue a RTAO if it finds the following: 1. The claim upon which the attachment is based is one upon which an attachment may be issued - i.e., the claim is: (a) for money based on contract; (b) of a fixed or readily ascertainable amount not less than \$500; (c) either unsecured or secured by personal property; and (d) if against an individual, that the claim arises out of the conduct by the individual of a trade, business, or profession. 2. The plaintiff's claim is probably valid. 3. The attachment is not sought for any purpose other than securing the creditor's claim. 4. The amount secured by the attachment is greater than zero. (Code Civ. Proc. §§ 483.010, 484.090(a)(1)-(4).) In addition, “[w]here the defendant is a natural person, the description of the property shall be reasonably adequate to permit the defendant to identify the specific property sought to be attached.” (Code Civ. Proc. § 484.020(e).) Initially, the property that Plaintiff seeks to attach are two real properties owned by Khor located in Orange County: 126 Cinnamon Teal, Aliso Viejo, California 92656, and 16 Clearbrook, Irvine, CA 92614. Plaintiff contends that its claim for breach of contract is one upon which an attachment may be issued and that Plaintiff's claim arises out of Defendant, Paul Khor's conduct of a trade, business, or profession. The operative First Amended Complaint (“FAC”) includes a claim for breach of contract for payment of services pursuant to a Management Services Agreement entered into between Plaintiff and Defendant California Behavioral Healthcare, LLC (“CBH”) in December 2022, and an amended Management Services Agreement entered into between Plaintiff and
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Defendant RSM Mission Recovery aka Recovery Services Management, LLC (“RSM”) in December 2022 (together, the “MSAs”). (FAC, ¶¶ 15-17, 20-24.) Both MSAs authorize Plaintiff, a corporation that specializes in operation and management to use Defendants CBH and RSM’s licenses to operate and manage their rehabilitation and detox care facilities for alcohol and substance abuse for an initial period of six months, and the MSAs could be renewed for another year. (FAC, ¶ 20.) Defendant Paul Khor (“Khor”) is the Manager, Member and/or Chief Executive Officer of Defendants CBH and RSM, and signed the MSAs on behalf of Defendants CBH and RSM. (FAC, ¶¶ 15, 18.) These allegations are also stated in the Declaration of Gina Petersin filed in support of the Request for Entry of Default Judgment. (ROA 276, Declaration of Jessica Taran (“Taran Decl.”), ¶ 3, Ex. A, Declaration of Gina Petersin, ¶¶ 13-22.) Defendant Khor does not dispute that the FAC includes a claim for breach of contract that arises out of the conduct by Defendant Khor of a trade, business, or profession. Thus, the FAC includes a claim for breach of contract upon which attachment may be issued. (Code Civ. Proc. § 483.010(a)-(c).)

Readily ascertainable amount.

Plaintiff contends that the total amount of the breach of contract claim is for a fixed readily ascertainable amount of \$127,729.52.

Defendant Khor contends that Plaintiff has not shown a fixed or readily ascertainable amount as Plaintiff’s own default prove-up declaration states that a later reconciliation showed \$109,643.25, not \$127,729.52. Defendant Khor also contends that Plaintiff’s FAC confirms that the amount allegedly due is not fixed or presently ascertainable as the FAC alleges that Plaintiff requires an accounting to determine the amount owed. Defendant Khor further provides that he disputes Plaintiff’s performance disputes the amount owed, and identifies damages and offset arising from billing problems, audit issues, and accreditation-related problems.

To be a readily ascertainable amount, the damages need not be liquidated, but they must be measurable by reference to the contract itself and the basis for computation must be reasonable and certain. (*CIT Group/Equipment Financing, Inc. v. Super DVD, Inc.* (2004) 115 Cal.App.4th 537, 540.)

Here, Plaintiff has not provided the basis for the calculation for damages for breach of contract in the amount of \$127,729.52. Additionally, while the Declaration of Gina Petersin filed in support of the Request for Entry of Default Judgment (“Petersin Declaration”) provides that Defendants, Paul Khor, CBH, and RSM owed a sum of at least \$127,729.52 in fees to Plaintiff for services Plaintiff provided prior to the termination of the MSAs in July 2023, said declaration also provides that a reconciliation of the bank account statements for Chase Bank belonging to Defendants CBH and RSM were done after the return of the subpoena was received in January 2025, and that the reconciliation confirmed that the amounts due and owing to Plaintiff is \$109,643.25. (ROA 276, Declaration of Jessica Taran (“Taran Decl.”), ¶ 3, Ex. A, Declaration of Gina Petersin (“Petersin Decl.”), ¶¶ 22, 26.)

Based on the foregoing, it is not shown that the damages of \$127,729.52 is a fixed or readily ascertainable amount.

Even assuming that the damages could be shown to be a readily ascertainable amount, Plaintiff has not shown the probability validity of a breach of contract claim against Defendant Khor, as discussed below.

Probable validity.

Plaintiff contends that it is more likely than not to prevail on its first cause of action for breach of contract against Khor as the existence and validity of the MSAs are not at issue, there is no dispute that Defendants did not pay Plaintiff its fees under the MSAs, Khor’s alter ego liability based on the default judgment against the corporate defendants, and that Plaintiff is likely to prove alter ego liability given the Government’s allegations against Khor in the criminal proceeding against him, and statements in Petersin’s Declaration.

Defendant Khor contends that Plaintiff cannot establish the probable validity of a claim for breach of contract against him personally as he is not party to the underlying MSAs, signed the MSAs on behalf of Defendants CBH and RSM, did not sign in his individual capacity, did not give a guaranty, and did not execute any promissory note, indemnity, side letter, settlement agreement, or other writing agreeing to be personally liable to Plaintiff. Khor also contends that Plaintiff’s Application lacks any competent evidence to support alter ego liability.

		A claim has probable validity if it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim. (Code Civ. Proc., § 481.190.) The probable validity determination requires the court to consider the relative merits of the positions of the respective parties and make a determination as to the probable outcome of the litigation. (<i>Loeb & Loeb v. Beverly Glen Music</i> (1985) 166 Cal.App.3d 1110, 1120.) The court has the power to determine disputed facts on the basis of a preponderance of the evidence as disclosed in the affidavits and declarations. (<i>Hobbs v. Weiss</i> (1999) 73 Cal.App.4th 76, 80—court must “consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.”) All facts stated in each declaration must be set forth with particularity. (Code Civ. Proc. § 482.040.) “This means that the affiant or declarant must show actual, personal knowledge of the relevant facts, rather than the ultimate facts commonly found in pleadings, and such evidence must be admissible and not objectionable.” (<i>Lydig Construction, Inc. v. Martinez Steel Corp.</i> (2015) 234 Cal.App.4th 937, 944.) The trial court is not required to accept as true the sworn testimony of any witness or undisputed affidavit testimony. It may make contrary findings based on inferences drawn from other evidence. (<i>Bank of America v. Salinas Nissan, Inc.</i> (1989) 207 Cal.App.3d 260, 273.) “[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.” (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.) Here, Plaintiff does not attempt to argue that Khor is a party to the MSAs. Khor submits a declaration stating that he signed the MSAs on behalf of CBH and RSM, that he did not sign the MSAs in his personal capacity, and that he did not sign any personal guaranty, promissory note, personal indemnity, side letter, settlement agreement, or other writing agreeing to be personally liable to URP for either entity's obligations. (ROA 295, Declaration of Paul Khor (“Khor Decl.”), ¶¶ 3-5.) Khor states that no one from URP asked him to become personally liable for either entity's obligations, that URP did not extend credit to him personally, and did not invoice him personally,
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and that he did not negotiate or enter into either MSAs as a personal transaction. (Khor Decl., ¶¶ 6-7.)

Plaintiff argues that Khor is liable through alter ego liability.

“The ‘single enterprise,’ or alter ego, doctrine is an equitable doctrine: ‘A corporate identity may be disregarded—the “corporate veil” pierced—where an abuse of the corporate privilege justifies holding the equitable ownership of a corporation liable for the actions of the corporation. [Citation.] Under the alter ego doctrine, then, when the corporate form is used to perpetuate a fraud, circumvent a statute, or accomplish some other wrongful or inequitable purpose, the courts will ignore the corporate entity and deem the corporation’s acts to be those of the persons or organizations actually controlling the corporation, in most instances the equitable owners. [Citations.]’ [Citation.]” (*Troyk v. Farmers Group, Inc.* (2009) 171 Cal.App.4th 1305, 1341.) “Alter ego liability is not limited to the parent-subsidary corporate relationship; rather, ‘under the single enterprise rule, liability can [also] be found between sister [or affiliated] companies.’ [Citation.]” (*Ibid.*)

“To recover on an alter ego theory, a plaintiff need not use the words ‘alter ego,’ but must allege sufficient facts to show a unity of interest and ownership, and an unjust result if the corporation is treated as the sole actor. [Citation.] An allegation that a person owns all of the corporate stock and makes all of the management decisions is insufficient to cause the court to disregard the corporate entity. [Citation.]” (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 415.)

Plaintiff first relies on the default judgment that was entered against all defendants, including Defendant Khor.

California accords collateral estoppel effect to default judgments, where the judgment contains an express finding on the allegations. (*Gottlieb v. Kest* (2006) 141 Cal.App.4th 110, 149.) “ ‘[A] default judgment conclusively establishes, between the parties so far as subsequent proceedings on a different cause of action are concerned, the truth of all material allegations contained in the complaint in the first action, and every fact necessary to uphold the default judgment; but such judgment is not conclusive as to any defense or issue which was not raised and is not necessary to uphold the judgment.” ’ [Citations.]” (*Ibid.*)

		Here, the default judgment did not render any express finding as to alter ego liability or piercing the corporate veil. (See Ex. B to Taran Decl., Default Judgment.) In addition, the FAC asserts other causes of action, in addition to the claim for breach of contract, against Khor for conversion (second cause of action), fraudulent concealment (fourth cause of action), constructive fraud (fifth cause of action), unjust enrichment (ninth cause of action), negligent misrepresentation (tenth cause of action). Thus, the default judgment does not support any basis for alter ego liability, and/or collateral estoppel on that issue. Even assuming that the fact that default judgment was entered against Khor could imply a possible finding of alter ego liability, default and default judgment has been set aside as against Defendant Khor. (See Ex. D to Taran Decl., Notice of Ruling Re Motion to Set Aside and Vacate Entry of Default and Any Default Judgment.) Plaintiff also argues that it is likely to prove alter ego liability given the Government’s allegations against Khor in the criminal proceeding against him, and statements in Petersin’s Declaration. The Court declines to take judicial notice of the indictment of Khor filed in the criminal action. Even if the Court were to take judicial notice of this court record, the Court declines to take judicial notice of the truth of hearsay statements contained therein. (<i>Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort</i> (2001) 91 Cal.App.4th 875, 882 [“[W]hile courts are free to take judicial notice of the <i>existence</i> of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files”].) Therefore, any allegations in the criminal action against Khor does not support alter ego liability. To the extent that the reply contends that the criminal proceedings are relevant to the need for attachment, Plaintiff already provides that the attachment is not sought for any purpose other than securing its claim. What remains is Plaintiff’s reliance on statements made in the Petersin Declaration. Petersin, as Controller of URP, declares, upon information and belief, that Khor has used the funds owed to Plaintiff to pay for personal debts and expenses of Defendants CBH, RSM, Hillside Mission, Hillside Mission LLC, Medical Concierge LLC, and Steele Canyon, LLC, that Defendant Khor has failed to maintain adequate financial practices in the operation and management of their
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corporations, that their failure to maintain corporate formalities warrant piercing the corporate veil of each of the Defendant entities as there was no real separation between the company and its owners, and that their actions were wrongful and fraudulent such that maintaining a separate corporate existence of each of the Defendant entities would lead to an injustice or inequitable result. (Ex. A to Taran Decl., Petersin Decl., ¶¶ 27-28.) Petersin also declares that Khor's negligent operation of Defendant entities included a failure to maintain adequate financial practices, resulting in over \$100,000 in checks being delivered to the wrong facilities, mailboxes, and persons, without knowledge to Khor and other parties who may be owed funds; that upon information and belief, Khor did not inquire with any entity regarding the checks or attempt to locate or retrieve said checks; and that at all times relevant and prior to entering into the MSAs with Plaintiff, Khor misrepresented that the Defendant entities were in good standing and clear of any audits. (Ex. A to Taran Decl., Petersin Decl., ¶¶ 29-30, 32.)

Based on the foregoing, Petersin does not have actual, personal knowledge of the facts concerning Khor's use of funds owed to Plaintiff to pay personal debts and expenses of Defendants CBH or RSM, that Khor failed to maintain adequate financial practices in the operation and management of their corporations, and that Khor did not inquire with any entity regarding the checks or attempt to locate or retrieve the checks that were delivered to the wrong facilities. Petersin declares that over \$100,000 in checks were delivered to the wrong facilities, mailboxes, and persons, without knowledge to Khor, CBH, and RSM, and other parties who may be owed funds. Even if this supports a failure to segregate funds, the evidence does not show that it is more likely than not that Khor used the corporate form and used funds mean for CBH and RSM for Khor's own wrongful or inequitable purpose.

The reply argues that Khor is not merely an officer of CBH and RSM but is the Manger, Member and/or Chief Executive Officer of Defendants CBH and RSM, among the other entities (Ex. A to Taran Decl., Petersin Decl., ¶ 13), and that this supports an inference of a unity of interest. An inference is insufficient to establish that it is more likely than not that Plaintiff will prevail on a breach of contract claim based on alter ego liability.

Additionally, Khor directly refutes pertinent statements made by Petersin. Khor declares that CBH and RSM maintained

		separate Chase bank accounts during the MSA period and maintained accounting records, including QuickBooks records maintained by bookkeepers; that URP had authorized signatory access to the CBH and RSM bank accounts during the MSA period, as well as to banking information; that Khor did not use CBH or RSM funds from URP patients or URP operations to pay personal expenses for himself or Gwyneth Khor; and that Khor did not transfer disputed URP-related proceeds from CBH or RSM into his personal bank account. (Khor Decl., ¶¶ 9, 10, 12, 13.) The reply argues that there is a conflict in evidence as to URP's access to CBH and RSM bank accounts, but there is not. Petersin states that both MSAs were terminated in July 2023. (Ex. A to Taran Decl., Petersin Decl., ¶ 21.) Thus, that URP was removed from the accounts and were blocked from access in August 2023 do not appear conflicting. Based on the evidence submitted, Plaintiff does not show that it is more likely than not that it will obtain a judgment against Defendant Khor for its claim of breach of contract. As such, Plaintiff fails to show the probable validity of its claim for breach of contract against Defendant Khor. The Court OVERRULES all objections (Objection Nos. 1-6) made by Defendant Khor. The Court DENIES Plaintiff's request for judicial notice filed with the moving papers as the material are not relevant to the determination of the issues on this Application. A court may deny a request for judicial notice on the ground that the material is not relevant to the determination of the issues. (<i>State Compensation Ins. Fund v. ReadyLink Healthcare, Inc.</i> (2020) 50 Cal.App.5th 422, 442-443.) The Court GRANTS Plaintiff's request for judicial notice filed with the reply as to the California Secretary of State Statements Information pursuant to Evidence Code section 452(h). Defendant Khor to give notice.
110	American Express National Bank vs. Chien 23-01330698	Claim of Exemption - Wage Garnishment Defendant Nelson Chien's Claim of Exemption is GRANTED for the reasons set forth below.

		The party claiming an exemption bears the burden of proof. (Code Civ. Proc., § 703.580(b).) The exemption statutes are to be liberally construed in favor of the claimant. (Independence Bank v. Heller (1969) 275 Cal.App.2d 84, 88.) “Money in a judgment debtor's deposit account that is not otherwise exempt under this chapter is exempt to the extent necessary for the support of the judgment debtor and the spouse and dependents of the judgment debtor.” (Code Civ. Proc., § 704.225.) When the claimant claims that property is exempt as necessary for the support of the judgment debtor and the spouse and dependents of the judgment debtor, the claim of exemption shall include a financial statement. (Code Civ. Proc., § 703.530(a). Here, Defendant has provided the required financial statement. That financial statement indicates that Defendant has three dependents: his spouse and two minor children. His gross income is \$10,000.00 per month and his monthly take home pay is \$6,000.00. His savings account has a balance of \$10,000.00 and his monthly expenses total to \$10,200.00 for necessities such as rent, food, utilities, medical and dental payments, insurance, school/childcare, transportation, and installment payments. Defendant avers that he has no other funds available to pay for basic necessities. A letter from JPMorgan Chase Bank, N.A. dated December 11, 2025 to the levying officer regarding the Post Judgment Writ of Execution confirms that the balances of Defendant’s accounts were \$5,929.95 and \$10,873.41 as of the date of that letter. In light of Defendant’s financial statement and Defendant’s monthly expenses, the Court finds that the money in the subject JPMorgan Chase Bank accounts are necessary for the support of Defendant and his dependents, including his spouse who does not bring in any income. Defendant has demonstrated that the
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		money in those accounts are necessary for the support of himself and his dependents given that his monthly expenses exceed his monthly take home income. Upon the Court's execution of a formal Order Determining Claim of Exemption, the Clerk shall transmit a certified copy of this order to the levying officer. (Code Civ. Proc., §703.580(e).) Moving party to give notice.
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